



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 3/27/2026
BY: **MA. JIMENA R. JUTILO**
SR SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 33RD REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON MARCH 17, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Michael C. Escuyos		SB Member

ON OFFICIAL BUSINESS:

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ORDINANCE NO. 35
Series of 2026

“AN ORDINANCE REQUIRING HOUSES, BUILDINGS, PREMISES THEREOF AND ANY LAND WITHIN THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR TO BE KEPT AND MAINTAINED IN A SANITARY CONDITION AND IMPOSING PENALTIES FOR VIOLATIONS THEREOF”

Author: Hon. Michael C. Escuyos

Enacted: All Members Present

EXPLANATORY NOTE

This Ordinance seeks to require all houses, buildings, premises, and lands within the Municipality of Carmen, Surigao del Sur to be kept in a clean and sanitary condition. Unsanitary surroundings pose serious threats to public health, the environment and overall community well-being.

By establishing clear responsibilities for property maintenance and sanitation, this ordinance promotes cleanliness, prevents disease and supports environmental protection. It empowers local authorities to monitor compliance and imposes penalties for violations.

[Handwritten signatures]

The enactment of this measure is necessary to foster a healthier, safer and more discipline community for all residents of Carmen.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

Section 1. TITLE- This Ordinance shall be known as the "Clean Premises and Sanitation Ordinance of the Municipality of Carmen, Surigao del Sur."

Section 2. DECLARATION OF POLICY- It is hereby declared the policy of the Municipality of Carmen to ensure a clean, safe and sanitary environment by requiring all persons to maintain their houses, buildings, premises and lands in a condition that promotes public health and environmental integrity.

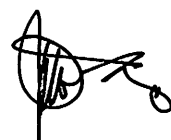
Section 3. DEFINITION OF TERMS- For the purpose of this Ordinance, the following terms are defined as follows:

- 1) Premises- includes any house, building, lot, yard, open space, vacant lot, or any land, whether occupied or unoccupied.
- 2) Owner/Occupant/Administrator- refers to any person, group, or entity in possession, control, or supervision of any house, building, or land within the municipality.
- 3) Sanitary Condition- refers to a state of cleanliness free from trash, garbage, stagnant water, foul odors, or any condition likely to cause the spread of disease or pose a nuisance to the public.
- 4) Nuisance- as defined under the Civil Code of the Philippines and related laws, any act, omission, establishment, business, condition of property, or anything else which causes injury, inconvenience, annoyance, or damage to the community or to people in general.

Section 4. GENERAL REQUIREMENTS- Every owner, occupant, or administrator of any house, building, or land within the Municipality of Carmen shall:

- a) Keep the interior and exterior of such premises clean, free from garbage, litter, stagnant water and foul odors.
- b) Ensure proper garbage disposal in accordance with existing waste management regulations.
- c) Maintain drainage and sewerage systems in good working condition.
- d) Prevent the accumulation of materials or conditions that may attract pests, vermin, or pose a fire or health hazard.
- e) Cut overgrown grass, weeds, or other vegetation that may harbor pests or obstruct the view of the roadway.
- f) Remove or treat any potential breeding places of mosquitoes and other disease vectors.

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Section 5. PROHIBITED ACTS- It shall be unlawful for any person to:

- a) Allow garbage, waste materials, or debris to accumulate within their property or adjacent premises.
- b) Permit stagnant water to remain uncovered or untreated.
- c) Fail to maintain the premises in a manner that prevents public nuisance or endangerment to public health.
- d) Use vacant lots for illegal dumping.
- e) Refuse access to Municipal Sanitation Officers or Health Inspectors for the purpose of enforcing this Ordinance.

Section 6. INSPECTION AND MONITORING- The Municipal Health Office (MHO), in coordination with the Municipal Environment and Natural Resources Office (MENRO) and Barangay Officials, shall regularly inspect and monitor compliance with this Ordinance.

Section 7. PENALTIES- Any person found to be in violation of this Ordinance shall be penalized as follows:

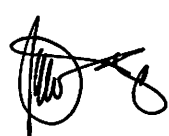
First Offense	-	Verbal warning and issuance of a notice to comply within seven (7) calendar days
Second Offense	-	A fine of One Thousand Pesos (Php1,000.00) or community service of one (1) day, subject to barangay supervision
Third Offense	-	A fine of One Thousand Five Hundred Pesos (Php1,500.00) and/ or imprisonment of up to five (5) days, at the discretion of the court
Fourth and Subsequent Offenses-		A fine of Two Thousand Five Hundred Pesos (Php2,500.00) and/ or imprisonment of up to ten (10) days, plus administrative action such as revocation of business permits (if applicable)

Each day of continued violation after the lapse of the notice to comply shall constitute a separate offense.

Section 8. ENFORCEMENT- This Ordinance shall be enforced by the:

- 1) Municipal Health Office (MHO)
- 2) Municipal Environment and Natural Resources Office (MENRO)
- 3) Municipal Engineering Office (MEO)
- 4) Barangay Officials
- 5) Philippine National Police (if necessary)

Section 9. APPROPRIATIONS- The amount necessary for the implementation of this Ordinance shall be sourced from the funds of the Municipality or from any available sources as authorized by the Sangguniang Bayan.

Section 10. SEPARABILITY CLAUSE- If any part or provision of this Ordinance is declared unconstitutional or invalid, the remaining parts not affected shall remain in full force and effect.

Section 11. REPEALING CLAUSE- All Ordinances, rules and regulations inconsistent with this Ordinance are hereby repealed or modified accordingly.

Section 12. EFFECTIVITY- This Ordinance shall take effect fifteen (15) days after its approval.

ENACTED this 17th day of March, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
3-27-2026